

25STCV19371 25STCV19371

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Case Number: 25STCV19371 Hearing Date: August 14, 2026 Dept: 734

This

is a Lemon Law action based on an engine defect.

Defendant Ford Motor Company demur to the Second Amended Complaint.

TENTATIVE RULING

Defendant Ford Motor Company's

demurrer to the Second Amended Complaint is SUSTAINED without leave to amend as to the first through fourth causes of action.

The case is ordered dismissed with prejudice.

ANALYSIS

Meet and Confer

The

Declaration of Chen Fei Liu reflects that Defendant's counsel satisfied the meet and confer requirement set forth in Civ. Proc. Code, § 430.41.

Discussion

The Court has

reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Defendant Ford Motor Company demurs to the Second Amended Complaint as follows:

1. First

Cause of Action (Violation of Civil Code § 1793.2(d)); Second Cause of Action (Violation of Civil Code § 1793.2(b); Third Cause of Action (Violation of Civil Code § 1793.2(a)(3).); Fourth Cause of Action (Breach of Implied Warranty of Merchantability—Civil Code § 1791.1, § 1794, § 1795.5)[1].

A.

Re: Statute of Limitations

Defendants

argue that these causes of action are time-barred by the six year statute of limitations/statute of response in Civ. Proc. Code, § 871.21. Defendants argue that the 2AC alleges that Plaintiffs entered into a warranty contract with Ford for a 2018 Ford F-150 on October 8, 2018, and was delivered with defects and nonconformities to warranty, but Plaintiffs did not file suit until over six years later on June 27, 2025. (2AC, ¶ 7.)

The

Court addresses whether § 871.20 covers Plaintiff's claims for violation of the following Civil Code Sections: §1793.2(d)); 1793.2(b); §1793.2; 1791.1, § 1794, § 1795.5.

As is relevant

to the foregoing, Code Civ. Proc. § 871.20 applies to the following:

(a) Notwithstanding any other law, this chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) [repair to conform within 30 days] or (d) [replace or reimburse] of Section 1793.2 [duties of manufacturer making express warranty], Section 1793.22 [reasonable number of attempts; dispute resolution], or Section 1794 [buyer's damages, penalties and fees] of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.

(b) This chapter does not apply to service contract claims under Section 1794 of the Civil Code or any action seeking remedies that are not restitution or replacement of a motor vehicle.

(Civ. Proc. Code,
§ 871.20 [bold emphasis added].)

Code Civ. Proc. § 871.21 provides:

(a) An action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty.

(b) Notwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.

(c) The time periods prescribed in subdivisions (a) and (b) shall be tolled as follows:

(1) As provided by tolling requirements prescribed in subdivision (c) of Section 1793.22[2] of the Civil Code, as applicable.

(2) For the time the motor vehicle is out of service by reason of repair for any nonconformity.

(3) For the time period after a pre-suit notice is provided to the manufacturer in accordance with Section 871.24[3], which time period shall not exceed 60 days.

(Civ. Proc. Code,
§ 871.21 [bold emphasis added].)

As is relevant to the foregoing, Code Civ.
Proc. § 871.20 applies to the following:

(a) Notwithstanding any other law, this chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) [repair to conform within 30 days] or (d) [replace or reimburse] of Section 1793.2 [duties of manufacturer making express warranty], Section 1793.22 [reasonable number of attempts; dispute resolution], or Section 1794 [buyer's damages, penalties and fees] of the Civil Code, or for civil penalties

pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.

(b) This chapter does not apply to service contract claims under Section 1794 of the Civil Code or any action seeking remedies that are not restitution or replacement of a motor vehicle.

(Civ. Proc. Code,
§ 871.20 [bold emphasis added].)

As is discussed
above Civ. Proc. Code § 871.20 applies to claims for restitution or replacement pursuant to Civil Code § 1793.2(b) [repair to conform to express warranty within 30 days] or (d) [replace or reimburse]; Civil Code § 1793.22 [reasonable number of attempts; dispute resolution], or Civil Code § 1794 [buyer's damages, penalties and fees] Notably, Civil Code § 1794(a) provides:

(a) Any buyer
of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief.

(Civ. Code § 1794(a)[bold emphasis added].)

"This
chapter" refers to Chapter 1 "Consumer Warranty Protection," which spans Civil Code §§ 1790 – 1795.8. All of Plaintiff's claims arise from statutory sections contained within Chapter 1. As such, the statute of limitations set forth in Code Civ. Proc. § 871.21 applies to the statutory sections upon which Plaintiff relies.

Code Civ. Proc.
§ 871.30 provides:

(a) Within 30 days of the effective date
of the act adding this section, a manufacturer may elect to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles sold in the year 2025 and in all prior years by providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs.

(b) Within 60 days of the effective date of the act adding this section, the Arbitration Certification Program within the Department of Consumer Affairs shall publish to its website the list of all manufacturers that have elected under subdivision (a) to proceed under this chapter for actions related to motor vehicles sold in the year 2025 and in all prior years.

(c) Unless a manufacturer has made the election described in subdivision (a), Sections 871.20 to 871.28, inclusive, shall not apply to an action described in subdivision (a) of Section 871.20, including actions already filed between January 1, 2025 and the effective date of the act adding this section, with respect to all of its vehicles sold new in the year 2025 and in all prior years.

(Code Civ. Proc., § 871.30 [bold emphasis added].)

The Court takes judicial notice of the list of manufacturers who have opted in to the new Lemon Law procedures set forth in Civil Code of Procedures sections 871.20 to 871.30. This list is found on the Department of Consumer Affairs, Arbitration Certification Program website page[4] located at: https://www.dca.ca.gov/acp/accepted_manufacturers.shtml

The Court takes judicial notice that Defendant Ford Motor Company appears on this list as having opted in. As such, it may invoke the statute of limitations set forth in Code of Civil Procedure section 871.21(b).

Code Civ. Proc. § 871.21's effective date was January 1, 2025, but it was enacted on September 29, 2024. (See 2024 Cal AB 1755, History: Filed with Secretary of State September 29, 2024; Approved by the Governor September 29, 2024; Effective date: January 1, 2025.) This gave plaintiffs three months from the date of enactment until the effective date. This was a reasonable time for Plaintiff to sue prior to the effective date, so § 871.21 will be applied as enacted.

Legislation that shortens a limitations period is considered procedural and is applied retroactively to preexisting causes of action, so long as [*1092] parties are given a reasonable time in which to sue. (Citations omitted.) When necessary to provide a reasonable time to

sue, a shortened limitations period may be applied prospectively so that it commences on the effective date of the statute, rather than on the date the cause of action accrued. (Citations omitted.)

Applying these legal principles, the Court of Appeal in this case concluded that the legislation vesting PERB with jurisdiction over MMBA unfair practice charges, effective July 1, 2001, shortened the applicable limitations period from three years to six months. This shortened limitations period applies retroactively to MMBA unfair practice charges based on conduct that occurred before July 1, 2001, provided that parties are given a reasonable time in which to file such charges with the PERB. Concluding that six months was a reasonable time in this context, the Court of Appeal held that for MMBA unfair practices occurring before July 1, 2001, a charge filed with the PERB was timely if brought within three years of the occurrence of the unfair practice, or within six months of July 1, 2001 (in other words, before January 1, 2002), whichever was sooner. We agree that this is a correct application of the controlling legal principles.

The PERB and the CSEA argue in substance that the Court of Appeal's holding retroactively extinguishes existing unfair practice claims because parties had no notice of the six-month limitations period until the Court of Appeal issued its decision. This assertion erroneously assumes that the Court of Appeal, rather than the Legislature, shortened the limitations period to six months and that this shortened limitations period took effect only when the Court of Appeal issued its decision. To the contrary, the Legislature established the six-month limitations period, effective July 1, 2001. After that date, there was no valid legal basis for any party, or for the PERB, to rely on the previous three-year limitations period, which had applied to judicial actions to enforce the MMBA. In determining the applicable limitations period, the Court of Appeal merely decided a legal question; it did not change any settled rule on which parties could reasonably have relied. (Citation omitted.) Its holding, which we adopt, did not constitute an unfair retroactive change in the law.

(Coachella Valley Mosquito &
Vector Control Dist. v. California Public Employment Relations Bd. (2005) 35
Cal. 4th 1072, 1091-92. [bold emphasis and underlining added])

Even though generally, the operation of statutes of limitations is considered to be a procedural matter in California, if a limitations period has been legislatively shortened, constitutional and substantive issues will arise

concerning retrospective application if: “[I]n a given case, that retrospective application may violate due process by in effect eliminating the plaintiff’s right. If the time left to file suit is reasonable, no such constitutional violation occurs, and the statute is applied as enacted. If no time is left, or only an unreasonably short time remains, then the statute cannot be applied at all.” (Aronson v. Superior Court (1987) 191 Cal. App. 3d 294, 297 [236 Cal. Rptr. 347].) It is a question of law whether a party has a reasonable time after a change in the law to file an action. (Ibid.)

(Sznyster v. Malone (2007) 155 Cal.App.4th 1152, 1162 [bold emphasis and underlining added].)

Plaintiff argues

that creating a new deadline that has already passed deprives a plaintiff of any meaningful opportunity to respond. However, as discussed above, Plaintiff had 3 months from the date of enactment until the effective date to file suit.

Plaintiff argues

that the Court does not need to speculate as to what a reasonable period of time would be—Section 871.21, subdivision (a) provides a one-year period. Nowhere does § 871.2(a) refer to a “reasonable period.” Instead, § 871.20(a) provides the statute of limitations, thusly: “(a) An action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty.” (Code Civ. Proc. § 871.21(a).) The Court finds that 3 months is reasonable for purposes of filing suit after the date of enactment.

Defendant argues

the Code Civ. Proc., § 871.21 is a statute of repose, rather than a statute of limitation, and thus is not subject to tolling.

The Court starts

with the observation that Code Civ. Proc. § 871.21 is titled “Statute of Limitations.”

Moreover, §

871.21 expressly provides for instances where tolling shall occur, as follows:

(c) The time periods prescribed in subdivisions

(a) and (b) shall be tolled as follows:

(1) As provided by tolling requirements

prescribed in subdivision (c) of Section 1793.22[5] of the Civil Code, as applicable.

(2) For the time the motor vehicle is out of service by reason of repair for any nonconformity.

(3) For the time period after a pre-suit notice is provided to the manufacturer in accordance with Section 871.24, which time period shall not exceed 60 days.

(Code Civ Proc § 871.21(c).)

§ 871.21(c)

provides for tolling of an indeterminate amount of time in subdivision (1) and (2).

The express provisions for tolling weight against a finding that this is a statute of repose “because statutes of repose typically do not have tolling provisions.”(Burroughs v. Precision Airmotive Corp. (2000) 78 Cal.App.4th 681, 689-90.

Moreover, “a

statute of repose is not subject to forfeiture.” (PGA West Residential Assn., Inc. v. Hulven Internat., Inc. (2017)14 Cal.App.5th 156, 176-87 [bold emphasis added].) Yet, Code Civ. Proc. § 871.30 itself provides for forfeiture of the six year limitations period dating back to motor vehicles sold in 2025 and all prior years if the manufacturer did not timely opt-in to arbitration procedures. (Code Civ. Proc. § 871.30(a).) If a manufacturer did not timely opt-in within 30 days of the effective date of the statute, then the manufacturer has the option to opt-in only as to vehicles sold in five consecutive years, as to which the six-year limitation period set forth in Code Civ. Proc., § 871.21(b) would apply. (Code Civ. Proc., § 871.29(a).) Moreover, if the manufacturer did not opt-in at all, the six-year limitation period set forth in Code Civ. Proc., § 871.21(b) would not even apply.

For the foregoing

reasons, the Court finds that Code Civ. Proc. § 871.21 is a statute of limitations, not a statute of repose. Normally, “statutes of limitations are subject to statutory and equitable tolling.” (PGA West Residential Assn., Inc. v. Hulven Internat., Inc. (2017) 14 Cal.App.5th 156, 176.)

The Court will

address whether the Legislature intended to foreclose tolling of Code Civ. Proc. § 871.21. First, as noted above § 871.21 itself provides three tolling instances,

which weighs against a basis for limiting the application of equitable tolling. Nor does the statute include an express limit on the bases for tolling. The statute does not indicate the list is exhaustive. The statute does not utilize exclusivity language such as “in no event except as specified by statute” or “for any reason except provided.” Further, given the above discussion, there is nothing in the statutory text which suggests an implicit legislative intent to preclude equitable tolling, nor is there a discernable fundamental policy underlying the statute which would foreclose equitable tolling. These principles of statutory construction are discussed in (*McDonald v. Antelope Valley Community College Dist.* (2008) 45 Cal.4th 88:

Section 12960, subdivision (d), the governing statute of limitations for this administrative process, provides in part: “No [DFEH] complaint may be filed after the expiration of one year from the date upon which the alleged unlawful practice or refusal to cooperate occurred” It then identifies four exceptions: (1) a 90-day extension in instances of delayed discovery of the unlawful practice; (2) a one-year extension in certain instances of delayed discovery of the identity of the actual employer; (3) a one-to-three-year extension for Ralph Hate Crimes Act (Civ. Code, § 51.7) violations in cases of delayed discovery of the perpetrator’s identity; and (4) an extension to one year after an aggrieved party achieves the age of majority if the misconduct [*107] occurred while the party was a minor (§ 12960, subd. (d)(1)–(4)). We discern in this provision no basis for limiting the application of equitable tolling.

First, the statute does not include an express limit on the bases for tolling. While section 12960, subdivision (d) lists some bases for extending the statute of limitations, it does not indicate the list is exhaustive. The statute is thus unlike those statutes that contain exclusivity language and that courts have interpreted as confining tolling to specific listed bases. (See, e.g., *Laird v. Blacker* (1992) 2 Cal.4th 606, 618 [7 Cal. Rptr. 2d 550, 828 P.2d 691] [holding Code Civ. Proc., § 340.6, which “states that ‘in no event’ shall the prescriptive period be tolled except under those circumstances specified in the statute,” disallows tolling otherwise]; *Battuello v. Battuello* (1998) 64 Cal.App.4th 842, 847 [75 Cal. Rptr. 2d 548] [recognizing Code Civ. Proc., § 366.2, which bars tolling “for any reason except as provided” therein, may not otherwise be tolled].) We have never previously concluded that the legislative codification of particular tolling bases, alone, establishes a legislative intent to preclude tolling on any other basis. To the contrary, we have implicitly assumed that the Legislature’s authority to declare tolling bases (see, e.g., Code Civ. Proc., §§ 351–356) and the courts’ ability to

do likewise may coexist in the absence of an explicit legislative directive that they may not (see *Elkins v. Derby*, supra, 12 Cal.3d at p. 420, fn. 9).

4

Second, nothing in the text of the FEHA suggests an implicit legislative intent to preclude equitable tolling. Unlike Code of Civil Procedure section 337.15, the 10-year limitations period at issue in *Lantzy v. Centex Homes*, supra, 31 Cal.4th 363, the limitations period here (one year) is quite brief. It is thus typical of the short limitations periods to which we and the Courts of Appeal have consistently extended equitable tolling principles.

Third, we discern no fundamental policy underlying the FEHA that would dictate we categorically foreclose equitable tolling in all FEHA cases. To the contrary, we have explained that the express provisions of the FEHA evince a [*108] legislative intent that it and its statute of limitations must be liberally interpreted in favor of both allowing attempts at reconciliation and ultimately resolving claims on the merits.

(*McDonald v. Antelope Valley Community College Dist.* (2008) 45 Cal.4th 88, 106-08 [bold emphasis added].)

As such, the Court finds that the Legislature did not intend to foreclose the application of equitable tolling to the six-year limitations period set forth in Code Civ. Proc. § 871.21(b).

The question now is whether Plaintiffs have sufficiently alleged facts which would tolling the running of § Code Civ. Proc., § 871.21.

Here, Plaintiffs only make a generalized reference to equitable tolling, the discovery rule, the repair rule, fraudulent concealment and Judicial Council of California, App'x. I, Emergency Rules re: COVID-19.

However, Plaintiffs did not allege the facts surrounding their discovery of a latent defect and inability to repair it, such that the period of tolling may be ascertained. (2AC, ¶¶ 44 –

49.)

[Plaintiff] must fully state the circumstances under which the discovery was made and must show that the delay in filing the action is consistent with the requisite diligence. (Citation omitted.)”

(English v. Long Beach (1954)
126 Cal.App.2d 414, 421.)

Indeed, Plaintiffs

no longer specify a defect which was concealed from them which they could not have discovered earlier. Rather, there were a variety of problems with the vehicle: exhaust gas recirculation (“EGR”) valve (2AC, ¶ 15); loose hold-down bolt (2AC, ¶ 16); crack on steering wheel horn, driver’s air bag, body control module and powertrain control module reprogram (“PCM”)(2AC, ¶ 17); engine issues (replaced EGR valve, seals, and a coolant hose) (2AC, ¶ 18); fuel injectors and high-pressure fuel pump, and reprogrammed the powertrain control module (“PCM”)(2AC, ¶ 19); check engine light (reprogrammed PCM)(2AC, ¶ 20); loss of power, sunroof not opening properly; (reprogrammed the PCM, and replacing the sunroof guides (2AC, ¶ 21). There is no particular problem which Plaintiffs allege was concealed from them which they reasonably could not have discovered with reasonable diligence. Rather, the vehicle manifested symptoms of being an overall lemon, with the last visit occurring in May 14, 2024. (2AC, ¶ 21.) Indeed, Plaintiffs’ complaint appears to be that they eventually realized the car was a lemon—after seven repair visits spanning about 3 ½ years. (2AC, ¶¶ 15 – 21.) There is no factual allegation why, after all of the foregoing repair visits, Plaintiffs could not with reasonable diligence have discovered the basis for their lawsuit until they filed a lawsuit more than one year after the last visit in May 14, 2024.

Plaintiffs allege

repair doctrine tolling for the period that manufacturer claims that the defect is susceptible to repair and attempts to repair the defect. (2AC, ¶¶ 56 - 63.) Plaintiffs alleges that the vehicle was in the shop for an approximate total of 67 days. (2AC, ¶¶ 13 – 21.)

In Aced v. Hobbs-Sesack Plumbing Co., supra, 55 Cal.2d 573, the court held: “The statute of limitations is tolled where one who has breached a warranty claims that the defect can be repaired and attempts to make repairs.” (Id., at p. 585.) In Southern Cal. Enterprises v. Walter & Co., supra, 78 Cal.App.2d 750, the statute was tolled “as long

as the vendor claims that the defect . . . can be remedied and he is attempting to correct the error.” (Id., at p. 755.)

(A & B Painting & Drywall,
Inc. v. Superior Court (1994) 25 Cal.App.4th 349, 354.)

Plaintiff alleges estoppel due to fraudulent concealment of the defect. In particular, the 2AC alleges at ¶ 57: “Based on the foregoing, Defendant is estopped from relying on any statutes of limitation in defense of this action.”

A close cousin of the discovery rule is the “well accepted principle . . . of fraudulent concealment.” (Citation omitted.) “It has long been established that the defendant’s fraud in concealing a cause of action against him tolls the applicable statute of limitations, but only for that period during which the claim is undiscovered by plaintiff or until such time as plaintiff, by the exercise of reasonable diligence, should have discovered it.” (Ibid.) Like the discovery rule, the rule of fraudulent concealment is an equitable principle designed to effect substantial justice between the parties; its rationale “is that the culpable defendant should be estopped from profiting by his own wrong to the extent that it hindered an ‘otherwise diligent’ plaintiff in discovering his cause of action.” (Citation omitted[.]) n3

FOOTNOTES

n3 The rule of fraudulent concealment is applicable whenever the defendant intentionally prevents the plaintiff from instituting suit; the rule applies whether or not the action itself is based on fraud. (Citation omitted.)

(Bernson v. Browning-Ferris Industries
(1994) 7 Cal.4th 926, 931 [bold emphasis and underlining added].)

But “ ‘[a]n estoppel may arise although there was no designed fraud on the part of the person sought to be estopped. [Citation.] To create an equitable estoppel, “it is enough if the party has been induced to refrain from using such means or taking such action as lay in his power, by which he might have retrieved his position and saved himself from loss.” ... “... Where the delay in commencing action is induced by the conduct of the defendant it cannot be availed of by him as a defense.” ‘ “ (Citations omitted.) n18

FOOTNOTES

n18 The defendant's statement or conduct must amount to a misrepresentation bearing on the necessity of bringing a timely suit; the defendant's mere denial of legal liability does not set up an estoppel. (Citations omitted.)

(Lantzy v. Centex Homes (2003) 31 Cal.4th 363, 384 [bold emphasis added].)

Here, the 2AC does not allege concealment which prevented Plaintiff from timely filing suit on the basis that a timely suit was unnecessary.

Plaintiff also alleges tolling from April 6, 2020, until October 1, 2020 due to Judicial Council of California, App'x. I, Emergency Rules Related to COVID-19. (2AC, ¶ 58.) This tolling of five months and 26 days, plus the 62 days tolling under the repair doctrine (see above) totals a little shy of 8 months of tolling.

As noted above, Plaintiffs purchased the subject vehicle on October 8, 2018 (2AC, ¶ 7), and filed suit on June 27, 2025—six years, 8 months and 19 days later. Even with the 8 months of tolling, Plaintiffs' Complaint was filed about 19 days after the six-year statute of limitations expired.

As such, the demurrer to the first through fourth causes of action is SUSTAINED without leave to amend. The case is ordered dismissed with prejudice.

[1] Although the notice of motion indicates that Defendant is demurring the fifth cause of action for negligent repair and sixth cause of action for fraudulent inducement (Page 1:6 – 11), the Second Amended Complaint does not include those causes of action.

[2]

(c) If a qualified third-party dispute resolution process exists, and the buyer receives timely notification in writing of the availability of that qualified third-party dispute resolution

process with a description of its operation and effect, the presumption in subdivision (b) may not be asserted by the buyer until after the buyer has initially resorted to the qualified third-party dispute resolution process as required in subdivision (d). Notification of the availability of the qualified third-party dispute resolution process is not timely if the buyer suffers any prejudice resulting from any delay in giving the notification. If a qualified third-party dispute resolution process does not exist, or if the buyer is dissatisfied with that third-party decision, or if the manufacturer or its agent neglects to promptly fulfill the terms of the qualified third-party dispute resolution process decision after the decision is accepted by the buyer, the buyer may assert the presumption provided in subdivision (b) in an action to enforce the buyer's rights under subdivision (d) of Section 1793.2. The findings and decision of a qualified third-party dispute resolution process shall be admissible in evidence in the action without further foundation. Any period of limitation of actions under any federal or California laws with respect to any person shall be extended for a period equal to the number of days between the date a complaint is filed with a third-party dispute resolution process and the date of its decision or the date before which the manufacturer or its agent is required by the decision to fulfill its terms if the decision is accepted by the buyer, whichever occurs later.

(Civ. Code, § 1793.22(c).)

[3]

(a) At least 30 days prior to the commencement of an action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code, the consumer shall do all of the following:

(1) Notify the manufacturer of the consumer's name, the accurate Vehicle Identification Number ("VIN") of the motor vehicle, and a brief summary of the repair history and problems with the motor vehicle.

(2) Demand that the manufacturer repurchase or replace the motor vehicle.

(Civ. Proc. Code, § 871.24(a)(1) & (2).)

[4] The

Court may take judicial notice of agency websites. (See *Harley-Davidson, Inc. v. Franchise Tax Bd.*

(2015) 237 Cal.App.4th 193, 199 n.3; *In re Israel O.* (2015) 233 Cal.App.4th 279, 290 n.8.)

[5] Civil Code § 1793.22(c) provides in pertinent part as follows:

Any period of limitation of actions

under any federal or California laws with respect to any person shall be extended for a period equal to the number of days between the date a complaint is filed with a third-party dispute resolution process and the date of its decision or the date before which the manufacturer or its agent is required by the decision to fulfill its terms if the decision is accepted by the buyer, whichever occurs later.

(Civ. Code § 1793.22(c).)